April 6, 2026

Via electronic filing: regulations@cppa.ca.gov

To: California Privacy Protection Agency
Attn: Legal Division – Regulations
400 R St., Suite 350 Sacramento, CA 95811

Re: Preliminary Comment - Reducing Friction in Exercising Privacy Rights & OOPS

On behalf of the advertising industry, we provide the following comments in response to the California Privacy Protection Agency's ("CalPrivacy" or "Agency") invitation for preliminary comment on whether regulatory changes are needed to reduce friction in the exercise of privacy rights or to address opt-out preference signals ("OOPS").[1] We appreciate CalPrivacy's efforts to seek stakeholder input at an early stage. Early engagement can help ensure that any future requirements are workable, legally sound, and aligned with the California Consumer Privacy Act ("CCPA"). At the same time, we have significant reservations about certain topics identified for possible new rulemaking and the possible direction under consideration by the Agency. Any rulemaking should also consider the constitutional limits of regulating speech. Below we provide comments on a non-exhaustive list of issues we have identified with the Agency's preliminary rulemaking efforts. We intend to remain engaged should the Agency move forward with formal rulemaking.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,000 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.[2] By one estimate, approximately 18.9% of California jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 20.7% by 2029.[3] Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Agency further as it reviews submitted preliminary comments and considers whether new regulations to address consumer rights or OOPS are necessary.

I. CalPrivacy should avoid regulatory overreach and prescriptive design mandates.

We strongly believe that any future regulations should avoid prescribing user-interface design or notice language in a manner that effectively dictates how businesses communicate with

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[1] California Privacy Protection Agency, Invitation for Preliminary Comments, located here.
[2] S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.
[3] *Id.* at 15-16.

consumers or structure their products. Such mandates may raise constitutional concerns and extend beyond the Agency's authority to regulate.

A. Prescriptive regulations may raise constitutional concerns.

Overly prescriptive requirements regarding user-interface design or notice formats might raise broad constitutional concerns. In particular, regulations that specify that businesses must use certain language, preferred framing of consumer choices, or other presentation mandates may implicate protections for commercial speech. To the extent the Agency seeks to promote clear disclosures and ease of exercising consumer rights, regulations should be tailored and be mindful of broad constitutional principles.

B. The Agency must operate within the confines of its statutory authority.

Although the CCPA grants CalPrivacy rulemaking authority, that authority is not unlimited. Any regulation must remain grounded in, and consistent with, the text and rulemaking grants set forth in the statute. The preliminary rulemaking appears to move in new directions including product design, prescribing specific design elements, or wording for disclosures. The Agency should ensure its proposed rulemaking is rooted and consistent with the grants to it by the legislature and the People of California. The CCPA does not authorize open-ended regulation of every commercial practice that touches data, nor does it empower the Agency to redesign consumer-facing experiences across the whole of the digital economy. The statute sets forth specific rights, obligations, and enforcement mechanisms; regulations should therefore be directed at carrying out those provisions, not expanding them into freestanding requirements untethered to the law's text. We caution the Agency to avoid proposed regulations that impose substantive obligations that cannot be traced to a clear statutory basis because it risks exceeding delegated authority, upsetting the balance the Legislature struck, and creating uncertainty for businesses attempting in good faith to comply as well as consumer expectations.

II. Statutory guardrails for opt-out preference signals must remain central.

Any regulations addressing requirements or technical specifications for OOPS, whether transmitted through a platform, technology, or other mechanism, should remain closely aligned with the Agency's statutory mandate and the plain text of the CCPA. [4]

The statutory text already provides important guardrails for OOPS. In particular, the CCPA makes clear that opt-out preference signals must be free of defaults that presuppose consumer intent and must not permit platforms, browsers, or device manufacturers to unfairly disadvantage other businesses. Any implementing regulations therefore should prioritize, at a minimum, the following two statutory principles:

- A platform, browser, or device manufacturer that sends the signal must not unfairly disadvantage another business.[5]

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[4] Cal. Civ. Code § 1798.185(18)(A).
[5] *See* Sec. 1798.185(18)(A)(i).

- The signal must clearly represent the consumer's intent and must be free of defaults that constrain or presuppose that intent.[6]

The CCPA, as passed by the California Legislature and then amended via ballot initiative by California voters, is very clear on these points. The Agency should ensure that any proposed regulations faithfully implement these statutory limits, rather than introducing new requirements that risk altering the balance the Legislature and California voters clearly intended.

III. CalPrivacy should not move forward with formal rulemaking and should instead provide guidance to consumers and businesses if additional clarity is needed.

To the extent the Agency concludes that additional clarity on consumer rights or OOPS is needed, the Agency should issue nonbinding guidance rather than regulatory updates that carry the force of law. Overly prescriptive mandates would signal a one-size-fits-all approach which is especially problematic in fast-moving digital environments, where product design must evolve quickly to reflect changing technologies, consumer behavior, accessibility needs, and security considerations. For example, user-interface norms, consumer expectations, and technologies may all evolve rapidly. Any regulations that include specific design prescriptions can quickly become outdated, ineffective, or worse, counterproductive. By contrast, guidance, illustrative examples, and best practices can be revised more readily to reflect changes in technology, accessibility standards, and user behavior. Further, what promotes consumer understanding in one context may confuse users in another. Prescriptive regulations could inadvertently reduce clarity by forcing businesses to use rigid wording or repetitive mandated notices. The better course would be to clarify the substantive information consumers must receive in line with the disclosures the statute requires, while leaving room for businesses to determine how best to communicate that information in a manner that is accurate, clear, and appropriate to reflect their products or services.

We encourage CalPrivacy to take an approach grounded in statutory limits and practical flexibility to balance consumer protection with constitutional constraints, administrative-law principles, and the need for continued product innovation. A guidance-based approach would also better promote the Agency's consumer-protection objectives. Prescriptive rules may encourage businesses to design to the "letter of the regulation" rather than to the underlying goal of consumer understanding. A non-regulatory guidance approach would allow CalPrivacy to emphasize principles such as clarity, accessibility, and the avoidance of deceptive practices without imposing a monolithic required implementation model.

For these reasons, the Agency should reserve formal rulemaking for requirements clearly rooted in the statute and rely on guidance where the objective is to shape better user experiences or clarify expectations.

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[6] *See* Sec. 1798.185(18)(A)(iii).

We appreciate the opportunity to provide input at this preliminary stage. At the same time, we respectfully urge the Agency to ensure that any future rulemaking action remains narrowly grounded in statutory authority. Where the Agency's objective is to improve the consumer experience, it should prioritize nonbinding guidance, examples, and best practices rather than regulatory mandates. That approach would better avoid constitutional concerns, preserve flexibility, and allow the Agency to adapt more efficiently over time without the burdens of repeated rulemaking to revisit topics.

We intend to remain engaged in this process and to participate in any formal rulemaking effort should proposed regulations be issued. We also welcome further opportunities to engage with the Agency to help ensure that any eventual approach to consumer rights and OOPS is practical and consistent with the CCPA.

Thank you in advance for your consideration of these comments.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP–Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP